

25NWCV01647 25NWCV01647

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-27

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Case Number: 25NWCV01647 Hearing Date: August 27, 2026 Dept: R

#17

ZAMBRANO v. VELASQUEZ, ET AL.

CASE

NO.: 25NWCV01647

HEARING:

Thursday, August 27, 2026, at 9:30 AM

I.

Defendant CESAR DAVID VELASQUEZ's Motion to Compel

Plaintiff GERMAN ZAMBRANO's Response to Production of Documents, Set One is GRANTED.

II.

Defendant CESAR DAVID VELASQUEZ's Motion to Deem

Requests for Admission, Set One Admitted against Plaintiff GERMAN ZAMBRANO is GRANTED.

Moving

Party to give Notice.

Background

Defendant

CESAR DAVID VELASQUEZ ("Defendant") moves to: Compel Plaintiff GERMAN

ZAMBRANO's ("Plaintiff") Response to Production of Documents, Set One. Defendant

also moves to Deem Request for Admission Set One Admitted against Plaintiff.

Legal

Standard

"If a party

to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: (a)

The party to whom the demand... is directed waives any objection to the demand, including one based on privilege or on the protection for work product.... The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance.... (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (CCP §2031.300.)

If a party

to whom interrogatories and document demands are directed fails to respond at all, the propounding party's remedy is to seek a court order compelling answers thereto. (CCP §§ 2030.290, 2031.300.) All that needs to be shown is that the discovery was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. The moving party is not required to show a reasonable and good faith attempt to resolve the matter informally before filing this motion. A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (See *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

On

October 22, 2025, Defendant propounded Plaintiff with Requests for Production, Set One and Requests for Admission, Set One.

Plaintiff

failed to provide a response.

Therefore, Defendant's

Motions are GRANTED, and Plaintiff CESAR

VELASQUEZ is ORDERED to provide

verified responses and documents, without objection by no later than 30 days

from date of the Court's issuance of this Order. Defendant's Requests for Admissions, Set One is Deemed Admitted.

This date may be extended by stipulation of the parties. If any objections are asserted, it will be tantamount to no response at all and will be deemed a violation of this Court's order.

Reasonable sanctions are GRANTED in the total amount of \$300.00. Plaintiff CESAR VELAQUEZ is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$300.00, payable within 60 days from the date of the Court's issuance of this Order.